

Tentative Rulings for August 17, 2026 Department 7

ANY REQUESTS FOR ORAL ARGUMENT WILL BE HEARD ON 8/19/26

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506027	HERNANDEZ vs CROWN AERO, LLC.	MOTION TO BE RELIEVED AS COUNSEL FOR IVAN HERNANDEZ

Tentative Ruling:

Plaintiff's Counsel's Motion to be Relieved as Counsel is granted. Proposed Order for signature required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507054	MINTZ vs JON ZORN DBA HUMMINGBIRD MHP INC.	MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES SET ONE
CVRI2507054	MINTZ vs JON ZORN DBA HUMMINGBIRD MHP INC.	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES SET ONE

Tentative Ruling: Hearing continued to 10/19/26.

Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) The party to whom interrogatories have been propounded shall respond in writing under oath to each interrogatory by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a)(1)-(3).) A party propounding interrogatories may move for an order compelling a further response if the party deems that an answer is evasive or incomplete or an objection to an interrogatory is without merit or too general. (CCP §2030.300(a)(3).)

Meet and Confer:

A motion to compel a further response to an interrogatory must be accompanied by a meet and confer declaration. (CCP § 2030.300(b).) The declaration must state facts showing a reasonable and good faith attempt at informal resolution of each issue presented by the motion. (CCP. §2016.040.) The purpose of the meet and confer requirement is to encourage the parties to work out their differences informally so as to avoid the necessity of a formal order. (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1016.) Whether a "reasonable and good faith attempt" was made requires an "evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit." (Clement v. Alegria (2009) 177 Cal.App.4th 1277, 1294.)

On April 21, 2026, Defendant served written discovery on Plaintiff, including Form Interrogatories, Set One and Special Interrogatories, Set One. (Decl. of Leahy, ¶ 3.) Plaintiff served responses on April 29, 2026. (Id at ¶ 4.) Counsel for Defendant served

one meet and confer letter on June 10, 2026 to which Plaintiff did not respond. (Id at ¶ 5; Ex. C.) This is insufficient since there has been no meaningful attempt to resolve the issues.

It appears that the majority of the interrogatories at issue involve the disclosure of medical information to which Plaintiff objects on grounds of privacy under the California Confidentiality of Medical Information Act and HIPAA. Medical records are protected by the right of privacy under the California Constitution. (John B. v. Superior Court (2006) 38 Cal.4th 1177, 119.) However, the right to privacy is not absolute and even private information can be disclosed in some circumstances. (Britt v. Superior Court (1978) 20 Cal.3d 844, 855-856.) Personal information can be ordered disclosed if the information is directly relevant and essential to a fair resolution of the action. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1431-1432.) A personal injury plaintiff partially waives some privacy protection by the filing of a lawsuit. (Vinson v. Superior Court (1987) 43 Cal. 3 833, 840.) However, the compelled disclosure must be precise and narrowly tailored. (Britt, supra, 20 Cal. 3d at 856.) Thus, only aspects of the party's medical history which are directly relevant to the incidents and injuries put into issue by the case are discoverable, while the party is entitled to retain the confidentiality of all medical and psychological information that is not directly related to those injuries. (Id at 864.)

In this case, it is clear that Plaintiff has put her mental health at issue by claiming emotional distress related to the alleged wrongful eviction. However, several of the interrogatories appear to be overbroad and seek confidential medical information unrelated to Plaintiff's emotional distress claim. Therefore, as part of the meet and confer process, the parties must discuss the extent of Plaintiff's privacy waiver.